

Central Electricity Regulatory Commission (Fees and Charges of Regional Load Despatch Centre and other related matters) Regulations, 2019

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Central Electricity Regulatory Commission (Fees and Charges of Regional Load Despatch Centre and other related matters) Regulations, 2019

UNION OF INDIA

India

Central Electricity Regulatory Commission (Fees and Charges of Regional Load Despatch Centre and other related matters) Regulations, 2019

Rule

CENTRAL-ELECTRICITY-REGULATORY-COMMISSION-FEES-AND-CHARGES-OF-REGIONAL-LOAD-DESPATCH-CENTRE-AND-OTHER-RELATED-MATTERS-REGULATIONS-2019 of 2019

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Central Electricity Regulatory Commission (Fees and Charges of Regional Load Despatch Centre and other related matters) Regulations, 2019

Published vide Notification No.L-1/153/2019/CERC, dated 5.4.2019

Last Updated 30th May, 2019

No.L-1/153/2019/CERC. - In exercise of powers conferred under Section 178 of the Electricity Act, 2003 (36 of 2003

) read with sub section 4 of section 28 thereof and all other powers enabling it in this behalf, and after previous publication, the Central Electricity Regulatory Commission hereby makes the following regulations, namely:

Chapter-1 Preliminary

1.

Short title and commencement.

(1)

These regulations may be called the Central Electricity Regulatory Commission (Fees and Charges of Regional Load Despatch Centre and other related matters) Regulations, 2019.

(2)

These regulations shall come into effect from the date of their publication in the Official Gazette, and unless reviewed earlier or extended by the Commission, shall be applicable during the control period from 1.4.2019 to 31.3.2024.

2.

Scope and extent of application.

- These regulations shall be applicable for determination of fees and charges to be collected by Regional Load Despatch Centres from the generating companies, distribution licensees, inter-State transmission licensees, buyers, sellers and inter-State trading licensees and any other users.

3.

Definitions.

- In these regulations, unless the context otherwise requires:

(1)

"Act" means the Electricity Act, 2003 (36 of 2003

);

(2)

"Additional Capitalization" means the capital expenditure incurred or projected to be incurred, after the date of commercial operation of the project and admitted by the Commission after prudence check;

(3)

"Annual LDC Charges (ALC)" : The Annual LDC charges (ALC) shall comprise the aggregate revenue requirement (ARR) for meeting the annual expenditure to be incurred by the RLDC and NLDC as approved by the Commission;

(4)

"Auditor" means an auditor appointed by the Power System Operation Corporation Limited, qualified for being appointed as an auditor in accordance with the provisions of sections 224, 233B and 619 of the Companies Act, 1956 (1 of 1956), as amended from time to time or Chapter X of the Companies Act, 2013 (

18 of 2013

), or any other law for the time being in force;

(5)

"Bank Rate" means the one year marginal cost of lending rate (MCLR) of the State Bank of India issued from time to time plus 350 basis points;

(6)

"Buyer" means a person buying power through medium term open access or long term access and whose scheduling, metering and energy accounting is coordinated by the Regional Load Despatch Centre;

(7)

"Capital Cost" means the capital cost as defined in Regulation 14 of these regulations;

(8)

"Capital Expenditure" or "CAPEX" means the expenditure of capital nature planned to be incurred during the control period for creation of assets of the Regional Load Despatch Centres or National Load Despatch Centre, as the case may be;

(9)

"Charges" means recurring payments on monthly basis to be collected by the Regional Load Despatch Centres for the services rendered by National Load Despatch Centre, Regional Load Despatch Centre and Power System Operation Corporation Limited;

(10)

"Commission" means Central Electricity Regulatory Commission referred to in sub-section (1) of section 76 of the Act;

(11)

"Contingency Reserve" is the reserve to be created and maintained by RLDCs and NLDCs from other incomes (other than registration fees and approved annual LDC charges) viz. short term open access application fees and operating charges, REC and PAT charges etc.

(12)

"Contracted Capacity" means the capacity arranged through long term access or medium term open access;

(13)

"Control Period" means a period of five years starting from 1.4.2019;

(14)

"Day" means the 24 hour period starting at 0000hour;

(15)

"Effective tax rate" for tax on return on equity is the rate (in %) calculated on the basis of actual tax paid by the concerned Load Despatch Centre in the respect of the financial year in line with the provisions of the relevant Finance Acts and in line with the norms defined in CERC (Terms and Conditions of Tariff) Regulations for the relevant control period notified by the Commission;

(16)

"Expenditure Incurred" means the fund, whether equity or debt or both, actually deployed and paid in cash or cash equivalent, for creation or acquisition of a useful asset and does not include commitments and the liabilities for which no payment has been made;

(17)

"Ergonomics" means the science of refining the design of products/Office equipment to optimize them for human use. Human characteristics, such as height, weight, as well as information about human hearing, sight, temperature preferences and so on are considered while choosing the workplace equipment/furniture. Ergonomics is sometimes known as human factors engineering;

(18)

"Fees" means the non-refundable one-time or fixed payments collected by the Regional Load Despatch Centres, or in a defined periodicity, by the National Load Despatch Centre, for the services rendered for commencement of grid access and scheduling and on account of registration, membership or any other purpose as specified by the Commission from time to time;

(19)

"Forum of Load Despatchers (FOLD)" means the body constituted by Forum of Regulators (FOR) and having NLDC, RLDCs, SLDCs as its members with secretariat at NLDC;

(20)

"Grid Access" means the permission granted by the concerned RLDC for integration of the generating station including a stage or unit of the generating station, or licensees, buyers and sellers with the grid on meeting the technical requirements;

(21)

"LDC Development fund" is the fund to be created and maintained by POSOCO for administering capital expenditure & other expenses for empowerment of human resources as approved by the Commission;

(22)

"Licensee" means a person granted a license under Section 14 of the Act;

(23)

"Logistics Function" means the support functions for NLDC/RLDCs as per Regulation 5(1) of these Regulations;

(24)

"Market Operation Function" means functions related to power market as per Regulation 5(2) of these Regulations;

(25)

"National Load Despatch Centre" or "NLDC" means the Centre at the national level established by the Central Government under sub-section(1) of Section 26 of the Act;

(26)

"Operational Expenditure or OPEX" refers to all the services related to the functions where a significant portion of delivery is through an annual recurring expenses mode;

(27)

"Other Support Functions" means the functions performed by the RLDCs and NLDC and includes but not limited to taxation and TDS Reconciliation, Accounting, Settlement, Billing & Collection, Contracts, human resource administration, management information system, legal & regulatory affairs and inputs for policy making;

(28)

"Power System Operation Corporation Limited" or "POSOCO" means a company entrusted with the operation of the National Load Despatch Centre in accordance with Section 26 of the Act and Regional Load Despatch Centres in accordance with Section 27 of the Act or any other related function assigned by the Govt./ Commission from time to time;

(29)

"Region" means any one of the regions demarcated by the Central Government under Section 25 of the Act;

(30)

"Regional entity" means an entity whose scheduling, metering and energy accounting is done at the regional level by the concerned Regional Load Despatch Centre;

(31)

"Regional Load Despatch Centre" or "RLDC" means the Centre for each region established by the Central Government under sub-section (1) of section 27 of the Act;

(32)

"Replacement Expenditure" or "REPEX" means the expenditure incurred or projected to be incurred for replacement of capital assets on completion of their useful life but are not covered under the Repairs and Maintenance expenses;

(33)

"Regulatory Pool Account" means the account operated by the RLDCs or NLDC under the relevant regulations or orders by the Commission for handling Deviation Settlement Charges, Reactive Energy Charges, Ancillary Services Operation, Congestion Charges and Congestion Revenue amount due to market splitting or any other pool account/ market product which may be operated by RLDCs or NLDC from time to time as per the Regulations or directions of the Commission;

(34)

"Scheme" means the facilities and equipment associated with and installed at the RLDCs, NLDC and Corporate office of POSOCO, as the case may be, as per Regulation 6 of these Regulation;

(35)

"Seller" means a person other than a generating company supplying power through medium term open access or long term access and whose scheduling, metering and energy accounting is coordinated by RLDCs or NLDC;

(36)

"State Load Despatch Centre (SLDC)" means the center established under subsection (1) of section 31 of the Electricity Act, 2003;

(37)

"System Operation Function" shall be as per Regulation 5(3) of these Regulations;

(38)

"User" means the generating companies, distribution licensees, buyers, Bulk consumers (SEZ), sellers and inter-State transmission licensees, Demand Response Consumers, Qualified Coordinating Agency (QCA), or any other such existing (or envisaged in future) entity who use the inter-State transmission network or the associated facilities and services of National Load Despatch Centre and Regional Load Despatch Centres further detailed as per Regulation 7 of these Regulations;

(39)

"Year" means a financial year;

The words and expressions used in these regulations and not defined here in but defined in the Act or the CERC (Indian Electricity Grid Code), Regulation, 2010 shall have the meaning assigned to them under the Act or the CERC (Indian

Electricity Grid Code) Regulations 2010 as amended from time to time.

Chapter-2 General

4.

Registration.

(1)

The users shall register through online application with the respective Regional load Despatch Centre (RLDC) for commencement of Grid Access for availing system operation services of RLDCs or NLDC as under:

(a)

All generating stations, distribution licensees and inter-State transmission licensees or any other user defined under clause 3(38) of these regulations intending to avail the Grid Access shall register themselves with concerned Regional Load Despatch Centre responsible for scheduling, metering, energy accounting and switching operations, not less than 30 days prior to intended date of commencement of Grid access, by filing an application in the format prescribed at Appendix-IV of these regulations:

Provided that when a unit is added to a generating station or an element is added to a transmission system, the generating company or transmission licensee, as the case may be, shall send an intimation to the concerned RLDC(s) within two days of such addition for updating its records;

(b)

The buyers and sellers who intend to avail grid access shall register themselves with the concerned Regional Load Despatch Centre not less than 30 days prior to intended date of commencement of grid access by filing an application in the format prescribed as Appendix-IV to these regulations;

(c)

The Power exchanges and traders who intend to avail the services of RLDCs and NLDC shall register themselves with the National Load Despatch Centre by filing an application in the format prescribed as Appendix-IV to these regulations.

(2)

Upon submission of the online application for registration, auto-generated acknowledgement for receipt of application shall be issued by the nodal agency.

(3)

After scrutiny, RLDC /NLDC shall intimate the deficiencies in the application, if any, to the applicant within one week of receipt of application. The applicant shall rectify the deficiency within one week thereafter, failing which the application shall be closed.

(4)

The RLDCs or NLDC, as the case may be, after scrutinizing applications for registration and on being satisfied with correctness of the information furnished in the application shall register the applicant and send a written intimation to the applicant.

(5)

The generating companies, distribution licensees, inter-State transmission licensees, power exchanges, traders, sellers and buyers and any other user as specified in Regulation 3(38) shall pay the registration fees as specified in these Regulations.

(6)

RLDCs or NLDC as the case may be shall maintain a list of registered users on their website along with their date of registration.

(7)

RLDC may, after issuing notice of at least one month, de-register a user in case of persistent default in payment of RLDC Fees and Charges for more than 90 days or termination of connectivity. A user can subsequently re-register once the default has been cured or connectivity re-established by paying 50% of the original registration charges.

5.

Functions of RLDC and NLDC.

(1)

Logistics Functions includes design, operations & maintenance of but shall not be limited to the following:

(a)

Engineering of new SCADA/EMS/WAMS/REMC upgrades

- (b)
Maintenance of SCADA/EMS/WAMS/REMC infrastructure
- (c)
Synchro- phasor technologies
- (d)
Real time software applications
- (e)
Off-line software applications
- (f)
Big Data Analytics tools
- (g)
Decision Support Systems
- (h)
IT, Networking and Communication systems including websites, Wi-Fi access systems, cyber security & other related systems
- (i)
Conference & meeting related facilities including audio-visual equipment such as video conference equipment etc.,
- (j)
Power supply system
- (k)
Fire fighting & alarm systems
- (l)
Ergonomic systems
- (m)
Public Address System
- (2)
Market Operation function includes but shall not be limited to the following functions:
 - (a)
Facilitating Grid Access to new entities including but not limited to first time charging of elements
 - (b)
Feedback in respect of Market Design, for complementing reliability and causing economy
 - (c)
Open Access Administration
 - (d)
Finalization of Inter-change schedules for energy accounting
 - (e)
Day Ahead Market
 - (f)
Real Time Market
 - (g)
Ancillary Services Market,
 - (h)
Interface Energy Metering.
- (3)
Registry Function under REC and PAT and similar other scheme as directed by the Commission includes:
 - (i)
Information dissemination.
 - (j)
Any other functions assigned to the RLDCs or NLDC under the Act and/or National Load Despatch Centre Rules, 2005 ('NLDC Rules') or the regulations and orders issued by the Commission from time to time;
- (4)

System Operation function includes but shall not be limited to the following functions:

- (a)
Operational Planning
 - (i)
Load Forecasting
 - (ii)
Re forecasting
 - (iii)
Fuel security assessment
 - (iv)
Production cost optimization studies
 - (v)
Generating outage planning
 - (vi)
Transmission outage planning
 - (vii)
Assessment of Transfer Capability
 - (viii)
Reactive Power studies
 - (ix)
Short circuit and transient stability studies
 - (x)
small signal stability studies
 - (xi)
Electromagnetic transient studies
 - (xii)
Mock black start drills
 - (xiii)
Operation of back up control centre
 - (xiv)
Preparations for special events like festivals, natural calamities like cyclone, floods etc.
 - (xv)
Documentation of procedures (operating, restoration)
- (b)
Scheduling and Despatch on day-ahead and realtime basis
 - (i)
Day ahead security studies factoring all outages
 - (ii)
Unit commitment
 - (iii)
Day ahead optimization and scheduling
 - (iv)
Shift Crew Resource Management
 - (v)
Anticipating and mitigating congestion
 - (vi)
Preparation for special events
 - (vii)
Handling requests for emergency/urgent outages unforeseen in operational planning horizon
- (c)
Real Time Operation

- (i)
Frequency Control
- (ii)
Voltage control
- (iii)
Tie line loading control
- (iv)
Congestion management
- (v)
Ensuring security at all times
- (vi)
Ancillary Services
- (vii)
Balancing Services, Automatic Generation Control
- (viii)
Real Time Contingency Analysis
- (ix)
Dynamic Security Assessment
- (x)
Monitoring weather updates
- (xi)
Handling emergency outage requests
- (xii)
Restoration of network after tripping
- (xiii)
Rescheduling of generation
- (xiv)
Reporting of a grid disturbance (GD)/grid incident(GI)
- (xv)
Periodic communication with stakeholders and sensitizing in case of emergency
- (xvi)
De-briefing after an extreme event
- (d)
After the Fact or Post Despatch Analysis:
 - (i)
Analysis of frequency and voltage
 - (ii)
Analysis of Grid Code violations and follow up with agencies
 - (iii)
Analysis of Grid Events (GD/GI)
 - (iv)
Evaluating primary response viz.computation of Frequency Response Characteristics (FRC) of individual control areas
 - (v)
Low Frequency Oscillations (LFO) monitoring and analysis
 - (vi)
Detailed reports of Grid Disturbances/Grid Events
 - (vii)
Simulation of events and learnings thereof
 - (viii)
Event replay, lessons learnt and dissemination of same
 - (ix)

Taking up shortcomings with stakeholders

(e)

Submission of Operational feed back to CEA/CTU/STU/CERC/SERC

(f)

Information dissemination and any other function(s) assigned to the RLDCs or NLDC, as the case may be, under the Act or NLDC Rules or regulations and/or orders issued by the Commission from time to time;

6.

Scheme.

- Includes but shall not be limited to the following: -

(k)

Supervisory control and data acquisition (SCADA) System, Wide Area Measurement System (WAMS), Renewable Energy Management Centre (REMC), Weather Portal and other such related information systems

(l)

Computer systems, hardware and software, Cyber Security Systems, Multiple Video conferencing facilities, Voice Recording Systems

(m)

Ergonomically designed office furniture/equipment

(n)

Auxiliary power supply system comprising Uninterrupted Power Supply, Diesel Generating Set and DC power system

(o)

Communication system including redundant communication infrastructure - Satellite communication in addition to conventional systems

(p)

Other infrastructure facilities, such as air-conditioning, fire-fighting and construction and renovation of buildings, roof-top solar units for energy efficiency etc.

(q)

Any innovative schemes R & D projects and pilot projects for better system operation, such as Synchro-phasors, System Protection Scheme,

(r)

Disaster Recovery (Main-I & Main-II) control centres for RLDCs and NLDC

(s)

Surveillance System

(t)

Dual redundant internet connectivity for Web Servers of LDCs

(u)

NMS (Network Management System) & Asset management tool for Network & IT Asset Monitoring

(v)

Market Management System Software

(w)

Cyber Security System infrastructure facilities such as Anti-APT (Advanced Persistent Threat) monitoring, Vulnerability Assessment for Persistent Threat (VAPT)& control Device, Local Area Network (LAN) Zone & Layer, Secure Sockets Layer (SSL) Certificate, SSL Virtual Private Network (VPN) and Security Information & Event Management(SIEM)

(x)

Infrastructure to ensure high availability of the Information Technology (IT) and Operational Technology (OT) applications:

(y)

Redundant communication links / distribution path for IT / OT equipment

(a)

Redundant site infrastructure - Disaster Recovery

(b)

Multiple independent distribution path serving the equipment

(c)

Dual powered and fully compatible with the site topology

(d)

Cooling equipment dual powered including air-conditioning system

(e)

Fault tolerant site infrastructure with electrical power storage, standby power supply, distribution facility

(f)

Physical access security needs to be ensured for IT - OT infrastructure with biometric access, CCTV surveillance, fire alarm and firefighting system.

(z)

Additional infrastructure facilities like 'Digital Signature', 'Instant Messaging for Business', 'Centralized Patch Management and Antivirus server', 'Syslog Server' and 'Enterprise class Backup and replication software' etc.

(aa)

Future Technologies like Cloud Computing (e.g. PaaS (Platform as a Service), SaaS (Software as a Service) and DaaS (Desktop as a Service) are available on Public Cloud, Private Cloud and Hybrid Cloud), Big Data Analytics tools and Advanced data visualization tool (with GIS interfacing) etc.

(bb)

Ergonomically designed office equipment

7.

Users specifications.

(1)

A generating station or unit whose scheduling, metering and energy accounting is carried out separately for each stage or unit, such generating station or stage or unit shall be considered as a user for the purpose of sharing of Annual LDC Charges (ALC) in accordance with Regulation 31 of these Regulations and for payment of registration fees in accordance with Regulation 29 of these Regulations;

(2)

In case of inter-State transmission licensees, each region where the licensee has the operation shall be considered as a user for the purpose of these Regulations;

(3)

Where the inter-State transmission system is having cross-border international connections, the agency designated by Government of India for coordinating the scheduling, metering and energy accounting for the transaction carried out for import and export of power through the said transmission system shall be considered as a user for the purpose of these Regulations;

(4)

Where any cross border generating station is connected to the inter-State transmission system of the Indian Grid and is injecting power through medium and/or long term PPA, the agency designated by Government of India for coordinating the scheduling, metering and energy accounting for the transaction carried out for import or export of power through the said transmission system shall be considered as a user for the purpose of these Regulations;

(5)

Sardar Sarovar Project (SSP), DVC and Bhakra Beas Management Board (BBMB), whose scheduling, metering and energy accounting is carried out by the concerned RLDCs, shall be considered as users of the respective Regional Load Despatch Centres for the purpose of this Regulation;

(6)

Distribution licensee selling power through LTA or MTOA and using transmission system shall be considered as a user under the category "Seller" for the purpose of these Regulations;

(7)

Any other entity which may use services of the RLDCs and NLDC from time to time;

8.

Capital Expenditure (CAPEX) and Replacement Expenditure (REPEX) Plan.

(1)

The RLDCs and NLDC shall formulate the scheme for Capital Expenditure (CAPEX) and Replacement Expenditure

(REPEX) for the control period duly approved by the Board of Directors of Power System Operation Corporation Limited. The CAPEX and REPEX plan shall also include future costs to be incurred for the up-gradation, modernization, automation and expansion of infrastructure in addition to existing capital assets.

(2)

The concerned RLDCs or NLDC as the case may be shall submit the following along with the petition for determination of fees and charges:

(i)

the CAPEX for the control period along with details of estimated expenses, and estimated completion period of each scheme;

(ii)

the REPEX plan for capital expenditure of existing asset, completion of life of existing asset, cumulative depreciation recovered, date of replacement, cumulative repayment of loan upto date of replacement, writing off of the gross value of the original assets from the original fixed assets along with estimated expenses and estimated completion period of each scheme.

(3)

In relation to any consolidated schemes of CAPEX and REPEX involving one or more RLDCs and/or NLDC, the capital expenditure chargeable to each RLDC and NLDC shall be segregated and considered as a part of capital expenditure of RLDC concerned and NLDC, as the case may be .

9.

OPEX Plan.

- RLDCs and NLDC shall identify the services to be engaged under OPEX and shall submit, along with the petition for determination of Fees and Charges, an year wise OPEX plan duly approved by the Board of Directors of POSOCO.

Chapter-3 Determination of Fees and Charges

10.

Application for determination of fees and charges.

(1)

The RLDCs and NLDC shall make application in the formats annexed as Appendix-I to these Regulations within 180 days from the date of notification of these Regulations, for determination of fees and charges for the control period, based on the capital expenditure incurred and duly certified by the auditor as on 1.4.2019 and projected to be incurred during the control period based on CAPEX, OPEX, REPEX and other expenditures viz. Human Resource expense, Operation & Maintenance, Interest on working capital etc.

(2)

The application shall contain particulars such as source of funds, equipment proposed to be replaced, details of assets written off, and details of assets to be capitalized etc.

(3)

Before making the application, the concerned RLDC or NLDC, as the case may be, shall serve a copy of the application on the users and submit proof of service along with the application. The concerned RLDC or NLDC shall also keep the complete application posted on its website till the disposal of its petition.

(4)

The concerned RLDC or NLDC, as the case may be, shall within 7 days after making the application, publish a notice of the application in at least two daily newspapers, one in English language and one in another Indian language, having circulation in each of the States or Union Territories where the users are situated, in the same language as of the daily newspaper in which the notice of the application is published, in the formats given in Appendix-II to these regulations. The RLDC or NLDC as the case may be will recover such expenditure on publication of notice of the application from the Users, as one-time expenditure.

(5)

The concerned RLDC or NLDC, as the case may be, shall be allowed the fees and charges by the Commission based on the audited capital expenditure incurred as on 1.4.2019 and projected to be incurred during control period as per Management Certificate for CAPEX and REPEX.:

Provided that the application shall contain details of underlying assumptions and justification for the capital expenditure incurred and the expenditure proposed to be incurred in accordance with the CAPEX and REPEX.

(6)

If the application is inadequate in any respect as required under Appendix-I of these regulations, the application shall be returned back to the concerned RLDC or NLDC for resubmission after rectifying the deficiencies as may be pointed out by the Commission.

(7)

The Commission shall consider the suggestions and objections, if any, received from the respondents and any other person including the consumers or consumer associations. The Commission shall issue order determining the fees and charges after hearing the petitioner, the respondents and any other person permitted by the Commission.

(8)

During pendency of the application, the applicant shall continue to bill the users on the basis of fees and charges approved by the Commission during previous control period and applicable as on 31.3.2019, for the period starting from 1.4.2019 till approval of the Fees and Charges by the Commission, in accordance with these Regulations. This shall be subject to true up as approved by the Commission for the Control Period 2019-2024.

(9)

After expiry of the control period, the applicant shall continue to bill the users provisionally on the basis of fees and charges approved by the Commission and applicable as on 31.3.2024 for the period starting from 1.4.2024 till approval of fees and charges under the applicable regulations.

11.

Determination of Fees and Charges.

- The Fees and Charges shall be determined separately for each of the Regional Load Despatch Centres and National Load Despatch Centre;

Provided that the annual charges of NLDC including corporate office expenses for the control period shall be apportioned among Regional Load Despatch Centres on the basis of the peak met (in MW) in the respective region as indicated on CEA's website for the preceding year.

12.

Prudence Check of Capital Expenditure.

- The principles adopted for prudence check of capital cost shall be reasonableness of capital cost, financing plan, interest during construction, use of efficient technology, upgradability/ scalability of the technology and systems to accommodate the growing requirement of system operation, cost over-run and time over-run, procurement of equipment and materials through competitive bidding and such other matters as may be considered appropriate by the Commission for determination of fees and charges:

Provided that, while carrying out the prudence check, the Commission shall also examine whether the RLDCs or NLDC, as the case may be, has been careful in its judgments and decisions in execution of the project.

13.

Truing up of Annual Charges.

(1)

The RLDCs and NLDC shall make an application, in the formats annexed as Appendix-I to these regulations by 31.10.2024, for carrying out truing up exercise after end of the control period.

(2)

The RLDCs and NLDC shall submit, along with the application for truing up, details of capital expenditure including additional capital expenditure, sources of financing, human resource expenditure, operation and maintenance expenditure etc. incurred for the period from 1.4.2019 to 31.3.2024, duly audited and certified by the auditor.

(3)

The Commission shall carry out truing up exercise along with the application for determination of fees and charges for the next control period based on the capital expenditure including additional capital expenditure incurred up to 31.3.2024 and as admitted by the Commission after prudence check at the time of truing up:

Provided that each of the Regional Load Despatch Centre or National Load Despatch Centre, as the case may be, shall carry out annual reconciliation and provisional truing up of expenditure based on the capital expenditure including additional capital expenditure up to 31st March of each financial year of the control period and refund the additional recovery of fees and charges to the users by 30th September of the following year.

Provided that the RLDC or NLDC, as the case may be, shall carry out mid-term review of its expenses once within the

control period, if the same is felt necessary in view of the emergent situation such as pay revision, significant deviation w.r.t. approved CAPEX or REPEX or any other unforeseen requirement, and may file the True-up Petition before the Commission, not before two years from the date of commencement of these Regulations.

(4)

The amount under-recovered or over-recovered by each of the Regional Load Despatch Centres or National Load Despatch Centre, as the case may be, along with simple interest at the rate equal to the bank rate as on 1st April of the respective year, shall be recovered or refunded by the respective RLDCs or NLDC or users, as the case may be, in six equal monthly installments.

Chapter-4 Computation of Capital Cost and Additional Capitalisation

14.

Computation of Capital Cost.

(1)

The capital cost as admitted by the Commission after prudence check, for each of the Regional Load Despatch Centres or NLDC, as the case may be, shall form the basis for determination of annual charges.

(2)

The capital cost shall be computed by considering the following:

(i)

The Capital cost as admitted by the Commission as on 01.04.2019 duly trued up by excluding liability, if any;

(ii)

Expenditure on account of additional capitalization determined in accordance with the Regulation 15 (1);

(iii)

The fixed assets which have been replaced during control period shall be de-capitalized in accordance with Regulation 15 (2);

(iv)

Interest during construction and incidental expenditure during construction;

(v)

Any grant received from the Central or State Government or any statutory body or authority for execution of the project which does not carry any liability of repayment shall be excluded from the Capital Cost for the purpose of computation of interest on loan, return on equity and depreciation;

(3)

The Capital cost shall be admitted after prudence check which may include scrutiny of the reasonableness of the capital expenditure, financing plan, Interest During Construction (IDC), Incidental Expenditure During Construction (IEDC), financing charges, any gain or loss on account of Foreign Exchange Rate Variation (FERV), cost over-run and time over-run and such other matters as may be considered appropriate by the Commission:

Provided that interest during construction shall be computed corresponding to the loan from the date of infusion of debt fund, and after taking into account the prudent phasing of funds duly adjusting IDC on account of time overrun if any;

Provided further that incidental expenditure during construction shall be computed after prudence check duly adjusting the IEDC on account of time over run, if any, interest on deposits or advances, or any other receipts and liquidated damages recovered or recoverable corresponding to the delay.

(4)

RLDC or NLDC shall submit Auditor Certificate for the capital expenditure incurred as on 1.4.2019 and , a Management Certificate duly signed by an authorised person, not below the level of Director of the company, for the projected capital expenditure for respective years of the period 2019-24:

15.

Additional Capitalization and De-Capitalization.

(1)

The capital expenditure incurred or projected to be incurred for the assets already in service and the additional assets projected to be procured during tariff period may be admitted, by the Commission, subject to prudence check.

(2)

In case of de-capitalization of assets under the REPEX or otherwise, the original cost of such asset as on the date of de-capitalization shall be deducted from the value of gross fixed asset along with corresponding adjustment in equity,

outstanding loan, cumulative repayment of loan and depreciation in the year such decapitalization takes place.

16.

Debt-Equity Ratio.

(1)

The actual debt - equity ratio as admitted by the Commission for the period ending 31.3.2019 shall be considered for the opening capital cost of the Regional Load Despatch Centres and National Load Despatch Centre for the next control period:

(2)

The capital expenditure incurred prior to 1.4.2019, where debt-equity ratio has not been determined by the Commission for determination of annual charges of RLDC for the period ending 31.3.2019, the Commission shall determine the debt: equity ratio in accordance with Regulation 11(3) of the Central Electricity Regulatory Commission (Fees and Charges for Regional Load Despatch Centres and other related matters) Regulations 2015:

(3)

For the capital expenditure incurred or projected to be incurred on or after 1.4.2019, the debt-equity ratio shall be considered as 70:30. If the equity actually deployed is more than 30% of the capital cost, equity in excess of 30% shall be treated as normative loan:

Provided that:

- i. Where equity actually deployed is less than 30% of the capital cost, actual equity shall be considered for determination of Return on Equity;
- ii. the equity invested in foreign currency shall be designated in Indian rupees on the date of each investment;
- iii. Any grant, other than LDC development Fund obtained for the execution of the project shall not be considered as a part of capital structure for the purpose of debt - equity ratio.

Explanation. - The premium, if any, raised by the Power System Operation Corporation Limited while issuing share capital and investment of internal resources created out of its free reserve, for the funding of the project, shall be reckoned as paid up capital for the purpose of computing return on equity, only if such premium amount and internal resources are actually utilized for meeting the capital expenditure of the RLDC.

Chapter-5 Fees and Charges Structure

17.

Components of RLDC Fees and Charges.

- The RLDC Fees and Charges shall comprise Regional Load Despatch Centre Fees to be recoverable by Power System Operation Corporation Limited towards registration for commencement of grid access and scheduling and annual charges to be collected in the form of Annual LDC Charges from users.

18.

Annual LDC Charges (ALC).

- The annual LDC charges shall correspond to the expenditure proposed to be incurred by the RLDCs or NLDC and as approved by Commission. The annual LDC charges (ALC) as approved by the Commission shall be recovered on monthly basis. The annual charges shall consist of the following components, namely:

(a)

Return on equity;

(b)

Interest on loan capital;

(c)

Depreciation;

(d)

Operation and maintenance (excluding human resource) expenses including:

? Administrative and General Expenses (excluding HRD expenses);

? Repair and Maintenance Expenses;

(e)

OPEX

(f)

Human resource (HR) expenses including Human Resource Development (HRD) expenses;

(g)

NLDC and Corporate office expenses

(h)

Interest on working capital;

Chapter-6 Computation of Annual LDC Charges (ALC)

19.

Return on Equity.

(1)

Return on equity shall be computed in Rupee terms on the equity base determined in accordance with Regulation 16 of these regulations.

(2)

Return on equity shall be computed on pre-tax base rate of 15.50% to be grossed up as per the sub-clause (3) of this Regulation.

(3)

The rate of return on equity shall be computed by grossing up the base rate with the effective tax rate of the respective financial year based on relevant Finance Act.

(4)

Return on equity with respect to the actual tax rate applicable to the Power System Operation Corporation Limited in line with the provisions of the relevant Finance Acts of the respective year during control period shall be trued up at the end of the control period.

(5)

Rate of return on equity shall be rounded off to three decimal points and be computed as per the following formula:

Rate of pre-tax return on equity = Base rate/ (1-t)

Where 't' is the effective tax rate in accordance with sub-clause (3) and regulation 3(15).

20.

Interest on Loan Capital.

(1)

The loan determined in accordance with Regulation 16 shall be considered as gross normative loan for calculation of interest on loan.

(2)

The normative loan outstanding as on 01.04.2019 shall be worked out by deducting the cumulative repayment as admitted by the Commission upto 31.03. 2019 from the gross normative loan.

(3)

The repayment for respective year of the control period shall be deemed to be equal to the depreciation allowed for that year. In case of de-capitalization of assets, the repayment shall be adjusted by taking into account cumulative repayment on a pro-rata basis and the adjustment should not exceed cumulative depreciation recovered upto the date of de-capitalization of such asset.

(4)

The rate of interest shall be the weighted average rate of interest calculated on the basis of the actual loan portfolio at the beginning of each year applicable to the respective Regional Load Despatch Centre:

Provided that if there is no actual loan for a particular year but normative loan is still outstanding, the last available weighted average rate of interest shall be considered;

Provided further that if any of the Regional Load Despatch Centre does not have actual loan, then the weighted average rate of interest on the loan of Power System Operation Corporation Limited as a whole shall be considered.

(5)

The interest on loan shall be calculated on the normative average loan of the year by applying the weighted average rate of interest.

(6)

The Power System Operation Corporation Limited shall make every effort to re-finance the loan as long as it results in net savings on interest and in that event the costs associated with such re-financing shall be borne by the users and the net savings shall be shared between the users and the Power System Operation Corporation Limited in the ratio of

50:50. The changes to the terms and conditions of the loans shall be reflected from the date of such re-financing. Provided that the users shall not withhold any payment on account of the interest claimed by the users and the Power System Operation Corporation Limited during the pendency of any dispute arising out of re-financing of loan.

21.

Depreciation.

(1)

The value base for the purpose of depreciation shall be the capital cost of the assets admitted by the Commission.

(2)

The salvage value of the asset (excluding IT equipment and Software) shall be considered as 10% and depreciation shall be allowed up to maximum of 90% of the capital cost of the asset. The salvage value for IT equipment and software shall be considered as NIL and 100% value of the assets shall be considered as depreciable.

(3)

Land shall not be a depreciable asset and its cost shall be excluded from the capital cost while computing depreciable value of the capital cost of the asset.

(4)

Depreciation shall be calculated annually based on Straight Line Method and at rates specified in Appendix-III to these regulations for the assets of the Regional Load Despatch Centre.

(5)

Assets fully depreciated shall be shown separately.

(6)

Value of the assets not in use or declared obsolete shall be taken out from the capital cost for the purpose of calculation of depreciation.

(7)

The balance depreciable value as on 1.4.2019 shall be worked out by deducting the cumulative depreciation from the gross depreciable value of the assets appearing in the books of accounts of the Power System Operation Corporation Limited for the respective Regional Load Despatch Centre and National Load Despatch Centre.

(8)

In case of de-capitalization of assets in respect of concerned RLDC, the cumulative depreciation shall be adjusted by taking into account the depreciation recovered in tariff by the de-capitalized asset during its useful life.

22.

Operation and Maintenance Expenses.

(1)

Operation and maintenance(O&M) expenses (excluding human resource expenses) shall be derived on the basis of actual operation and maintenance expenses for the years 2014-15 to 2018-19, based on the audited balance sheets. The O&M expenses shall be normalized by excluding abnormal operation and maintenance expenses, donation, loss-in-inventory, prior-period adjustments, claims and advances written-off, provisions, etc., if any, after prudence check by the Commission.

(2)

The normalized operation and maintenance expenses, after prudence check, for the years 2014-15 to 2018-19, shall be escalated at the rate of 4.77% to arrive at the normalized operation and maintenance expenses at the 2018-19 price level respectively and then averaged to arrive at normalized average operation and maintenance expenses for the 2014-15 to 2018-19 at 2018-19 price level. The average normalized operation and maintenance expenses of 2018-19 price level shall be escalated at the escalation rate as worked out in accordance with clause(4) of this Regulation to arrive the operation and maintenance expenses for the year 2019-20.

(3)

The operation and maintenance expenses for the year 2019-20 shall be escalated further at the annual escalation rate as worked out in accordance with clause (4) this Regulation to arrive at permissible operation and maintenance expenses for the subsequent years of the control period.

(4)

The escalation rate shall be worked out by considering the compounded annual growth rate, inflation rate, rationalization of O&M expenses and other factors, if any.

(5)

The actual expenditure towards Annual Maintenance Contract (AMC) of SCADA system and other Software/Hardware like REMC, National Open Access Registry (NOAR), web based scheduling software etc. involving significant expenditure, after prudence check, shall be considered for arriving at the Operation and Maintenance Expenses during 2019-20 to 2023-24.

23.

Operational Expenditure (OPEX).

- OPEX shall include services like Cloud Computing, Data Storage, Data Centre, Big Data Analytics tools, Advanced data visualization tool (with GIS interfacing), Satellite Services, Weather Data Services, WebNetUse, Forecasting Services, Licensee Fee for software, tools for knowledge upgradation or training of DICs etc. NLDC may procure software of transmission cost allocation centrally, if required, for use by respective DICs under OPEX.

Actual expenditure towards engaging of services under OPEX shall be considered, after prudence check during 2019-20 to 2023-24.

24.

Human Resource Expenses.

(1)

Human resource expenses shall be derived on the basis of actual human resource expenses for the years 2017-18 to 2018-19 based on the audited balance sheets. The human resource expenses shall be normalized by excluding abnormal Human resource expenses ex-gratia, VRS expenses, PRP/incentive, prior-period adjustments, claims and advances written-off, provisions, etc., if any, after prudence check by the Commission:

(2)

The expenses towards payment of Certificate Retainer-ship amount would be a part of the Human Resource Expenses.

(3)

Performance related pay computed in accordance with DPE /other applicable guidelines shall be met from the incentive allowed in accordance with Regulation 32 of these Regulations.

Provided that in case of any surplus in the incentive collected as per provisions of Regulation 32 after payment of performance related pay in accordance with DPE guidelines, such surplus amount shall be maintained separately to be used in subsequent years in case of shortfall of funds for payment of performance related pay as per DPE guidelines.

Provided further that in case shortfall in the funds as per Regulation 32 for distribution of performance related pay in accordance with DPE guidelines still persists, the shortfall shall be met from the LDC development Fund.

(4)

The normalized human resource expenses, after prudence check, for the year 2017-18 to 2018-19, shall be escalated at the rate of 4.77% to arrive at the normalized human resource expenses at the 2018-19 price level respectively and then averaged to arrive at normalized average human resource expenses for the 2017-18 to 2018-19 at 2018-19 price level.

(5)

The manpower approved during the year 2018-19 shall be the basis for computation of the HR expenses for 2019-20. Thereafter, for the subsequent years, the HR expenses shall be escalated at the annual escalation rate.

(6)

The average normalized human resource expenses of 2018-19 price level shall be escalated at the escalation rate as worked out in accordance with clause (8) of this Regulation to arrive the HR expenses for the year 2019-20.

(7)

The human resource expenses for the year 2019-20 shall be escalated further at the annual escalation rate as worked out in accordance with clause (8) this Regulation to arrive at permissible human resource expenses for the subsequent years of the control period:

(8)

The escalation rate shall be worked out by considering the compound annual growth rate, inflation rate, rationalization of human resource and other factors, if any.

(9)

The cost of anticipated increase in the manpower of each year of the control period shall also be considered after prudence check. The strength of manpower required for effective functioning of LDC will be as approved by the Commission while specifying the fees and charges.

(10)

Human Resource Development (HRD) expenses, incurred by the NLDC or RLDCS shall be a part of HR Expenses from FY 2019-20 onwards. In addition to the capacity building of the employees of NLDC or RLDCs, capacity building workshops and training programs organized for other stakeholders will also form part of the HRD expenses. Projected annual HRD expenses will be at least 5% of the HR expenses arrived based on the methodology defined above. However, if the actual utilization towards HRD expenditure exceeds the 5% of HR expenses of any year, it shall be allowed at the time of truing up by the Commission after prudence check. In case of less than 5% utilization, it shall be refunded at the time of annual truing up. All efforts shall be made to ensure that minimum seven days training per employee per annum is imparted as per the National Training Policy.

25.

Interest on Working Capital.

(1)

The working capital shall cover:

(i)

Operation and maintenance expenses (excluding human resource expenses) for one month;

(ii)

Human resource expenses including Human Resource Development Expenses for one month;

(iii)

NLDC charges and Corporate Office for one month ;and

(iv)

Receivables equivalent to 45 days of annual charges as approved by the Commission.

(2)

Rate of interest on working capital shall be on normative basis and shall be considered as the bank rate as on 1.4.2019 as per tariff Regulations.

(3)

Interest on working capital shall be payable on normative basis notwithstanding that the Power System Operation Corporation Limited has not taken any loan for working capital from any outside agency.

26.

NLDC Charges and Corporate Office) Expenses.

(1)

To the extent applicable, NLDC charges shall be computed by following the methodology specified for computing annual charges of Regional Load Despatch Centres except interest on working capital.

(2)

The Corporate Office Expenses, computed in accordance with the actual expenses incurred, shall be allowed by the Commission, after prudence check.

(3)

The expenditure towards running the FOLD Secretariat computed in accordance with the actual expenses incurred, shall be allowed by the Commission, after prudence check.

(4)

All expenses of NLDC and Corporate Office expenses approved by the Commission shall be apportioned to the Regional Load Despatch Centre on the basis of the peak met (in MW) in the respective region as indicated in CEA's website for the preceding year.

Chapter-7 LDC Development Fund

27.

LDC Development Fund.

(1)

The Power System Operation Company shall create and maintain a separate fund called 'Load Despatch Centre Development Fund' ('LDCD Fund') for administering capital expenditure.

(2)

The charges on account of return on equity, interest on loan, depreciation of the RLDCs and NLDC including the registration fees and interest earned on LDCD Fund shall be deposited into the LDCD Fund after meeting the statutory

tax requirements:

Provided that short term open access charges and other income of the RLDCs and NLDC, if any, shall not form part of the LDCD Fund and will be deposited to a separate account namely Contingency Reserve as per regulation - 28 of these Regulations.

(3)

The RLDC and NLDC shall be entitled to utilize the money deposited in the LDCD Fund for creation of new assets, loan repayment, servicing the capital raised in the form of interest and dividend payment restricted to 15.50% of paid up Capital, meeting stipulated equity portion in asset creation, margin money for raising loan from the financial institutions, Corporate Social Responsibility and Sustainability Activities in compliance of the applicable provisions of the Companies Act and Dept. of Public Enterprises (DPE) / other applicable Government Guidelines issued and amended from time to time, Capacity Building of SLDCc and sub-LDC personnel and other users / stake holders, including but not limited to using the platform of Forum of Load Despatchers (FOLD) and/or through Institutes of national/international repute for capacity building, funding participation in national/international conferences and publication of technical papers there-in, facilitating higher education, availing institutional membership with national/international bodies and funding of Research & Development (R & D) projects, hiring consultancy service for learning & implementation of new technology & market products etc. subject to approval of the Commission.

(4)

LDCs shall ensure timely payment of fees like membership fee or any other recurring or nonrecurring expenditure related to participation in the activities of the FOLD from the LDCD Fund. NLDC shall deposit such fees to the LDCD Fund after meeting the expenses on FOLD activities, if any.

(5)

Any shortfall in meeting the revenue expenditure including HR expenses shall be met from LDCD Fund. For this purpose, Load Despatch Centre shall be entitled to take interest free advance from LDCD Fund which shall be recouped from the expenditure allowed by the Commission under the respective heads at the time of truing up to be carried out after the expiry of the control period 2019-24.

(6)

Any asset created by the POSOCO out of the money deposited into the LDCD Fund shall be considered for computation of depreciation as per the rates specified in these Regulations. If required, POSOCO may finance capital assets partly from the equity and partly from LDCD Fund. As such, if the capital project is partly financed from equity share capital, it shall be considered for computation of return on equity, in which case, the funding shall be considered in a normative debt equity ratio of 70:30 with the interest on loan component as NIL and the treatment of equity as per regulation 16(2) of these Regulations. Load Despatch Centre shall submit details of such assets in the CAPEX plan.

(7)

POSOCO shall submit the amount accumulated in LDCD Fund along with the break-up of sources from where the Fund is received. The POSOCO shall submit to the Commission at the end of every year, a report, along with an auditor's certificate, on utilization of LDCD Fund during the previous year. The report shall, inter alia, contain the details of the quantum of utilized as well as un-utilized portions of the LDCD Fund. The Commission may, if necessary, issue directives to the RLDCs and NLDC for effective utilization of LDCD Fund. For financing of capital assets during 2019-24, money utilized from LDCD Fund shall be treated as interest free advance to be refunded to the Reserve.

28.

Contingency Reserve.

(1)

The RLDCs and NLDC shall maintain a separate account namely Contingency Reserve for depositing other income like short term open access charges, REC charges, PAT Charges and any other income (if any) etc.

(2)

The RLDCs and NLDC shall use such income to meet the short fall, if any, in the annual charges allowed by the Commission or to meet the contingency expenses which were not foreseen at the time of making the application for fees and charges and are considered necessary for the efficient power system operation.

(3)

The balance amount shall be deposited into the LDCD Fund after meeting the statutory tax requirements.

(4)

There may be some requirements for which funds available under the contingency expenses are not enough to meet the unforeseen requirements. Such shortfall may be met from the LDCD Fund.

Chapter-8 Computation and Recovery of fees and Charges

29.

Registration Fees.

- The fees shall be payable by the users including power exchanges and electricity traders before commencement of grid access and scheduling. The fees payable are as under:

(1)

The distribution licensees and inter State transmission licensees shall pay non-refundable one-time registration fees of Rs.10 Lakh along with application for commencement of grid access:

Provided that the RLDCs concerned shall be intimated from time to time by the inter State transmission licensees about the additions of transmission elements synchronized with the grid and by the distribution licensees about the additional capacity tied up for the purpose of updating the record by concerned RLDC.

(2)

The generating companies shall pay registration fees as under:

(a)

For generating station upto 10 MW installed capacity: Rs .0.50 Lakh;

(b)

Generating stations having installed capacity of more than 10 MW and upto 100 MW: Rs. 1.0 Lakh;

(c)

Generating stations having installed capacity of more than 100 MW and upto 2000 MW : Rs. 5.0 Lakh;

(d)

Generating stations having capacity of more than 2000 MW: Rs.10.0 Lakh, and;

(e)

Provided that the entire capacity of the generating station or stage there of whose scheduling, metering and energy accounting is done separately shall be considered for the purpose of registration fees at the time of the initial registration;

(f)

Provided further that the generating companies shall intimate RLDCs concerned about the additional capacity commissioned by the generating station or a stage thereof.

(3)

The inter-State trading licensees, sellers and buyers shall pay one time registration fees of Rs. 10,000.00 (Rupees Ten Thousands only) along with application for commencement of scheduling for market operation.

(4)

The Power exchanges shall pay Rs. 20.0 Lakh (Rupees Twenty Lakh only) as one time registration fees to NLDC.

(5)

All other users as defined in 3(38) of these regulations shall be liable to pay one time registration fees of Rs. 10,000 (Rupees Ten Thousand only) along with the application (ref. Appendix-IV) for commencement of grid access.

30.

Monthly LDC Charges.

- The monthly LDC charges shall be calculated for the inter-State transmission licensees, generating stations and sellers, distribution licensees and buyers as under:

(a)

The LDC Charges for inter-State transmission licensees shall be determined on the basis of (1/3) of approved annual charges and shall be worked out on the basis of the circuit kilometers (ckt-km) of the lines owned by inter-State transmission licensees;

(b)

The LDC Charges for the inter-State Generating station and sellers shall be determined on the basis of (1/3) of annual LDC charges and shall be worked out on the basis of installed capacity in case of the generating station and long term and / or medium term contracted capacity in case of sellers;

(c)

The LDC Charges for the distribution licensees and buyers shall be determined on the basis of (1/3) of annual charges and shall be worked out on the basis of sum of aggregate allocated capacity and / or contracted capacities in case of distribution licensee including deemed distribution licensees and sum of long term and / or medium term contracted capacity in case of buyer.

31.

Computation and Payment of LDC Charges.

(1)

The rates of LDC charges for inter-State transmission licensee shall be computed on annual basis and recovered on monthly basis in accordance with following formula;

Monthly LDC Charge rate (for Transmission Licensee) =

$(1/3) [ALC / (Ckt_Km)] / 12$ in Rs./Kilometer

Where,

ALC = Approved Annual LDC Charges in accordance with Chapters 5 & 6;

Ckt_Km = Length of aggregate inter-State transmission lines as on last day of the month prior to the month of billing (rounded off to the nearest two decimals);

(2)

Monthly LDC charges for individual transmission licensee shall be computed on the basis of rates determined above and the length (in Ckt_Km) of transmission lines owned and operated by the respective transmission licensee(s).

(3)

The rates of LDC charges for generating companies and sellers shall be computed on annual basis and recovered on monthly basis in accordance with following formula:

Monthly LDC Charge rate (for Generation or seller) =

$(1/3) (ALC / (Capacity)) / 12$ in Rs. / MW

Where,

ALC = Approved Annual LDC Charges in accordance with Chapters 5 & 6;

Capacity=Aggregate Installed capacity (in MW) of generating stations and contracted capacity (in MW) of the sellers (rounded off to the nearest two decimals) whose scheduling and energy accounting is covered under concerned RLDC as on last day of the month prior to the month of billing;

(4)

The monthly LDC charges for generating companies or sellers shall be computed on the basis of rates determined above and respective 'capacity' (MW) of the generating station or seller.

(5)

The rates of LDC charges for distribution licensee and buyers shall be computed on annual basis and recovered monthly after taking into account aggregate contracted capacity in accordance with following formula:

Monthly LDC Charge rate (for Distribution Licensee or buyer) =

$(1/3) (ALC / (Capacity)) / 12$ in Rs./ MW

Where,

ALC = Approved Annual LDC Charges in accordance with Chapters 5 & 6;

Capacity = Aggregate long term or medium term contracted capacity by distribution licensees and buyers (rounded off to the nearest two decimal) whose scheduling and accounting is covered under concerned RLDC as on last day of the month prior to the month of billing;

(6)

Monthly LDC charges from distribution licensees and buyers shall be collected in proportion to the sum of their allocations and contracted capacities, as the case may be, as on the last day of the month prior to billing of the month.

(7)

All other users having NIL contracted capacity (LTA & MTOA) shall be billed monthly ALC charge on the basis of a minimum capacity for which an entity is eligible for grant of connectivity to Inter-State transmission system as per the CERC Connectivity Regulations 2009.

(8)

The respective State Load Despatch Centre (SLDC) shall be the nodal agency for collection of monthly LDC charges payable to the concerned Regional Load Despatch Centre (RLDC), from the distribution licensees and other RLDC

users in the State. After collecting the monthly LDC charge the concerned SLDC shall deposit the same into the account of the concerned RLDC. The RLDC users in the state shall have to option to make direct payment of monthly RLDC Charges into the account of concerned RLDCs or they may choose to pay the same through the respective SLDCs.

Chapter-9 Performance Linked Incentive

32.

Performance linked incentive to RLDCs and NLDC.

(1)

Recovery of incentive by the Regional Load Despatch Centre shall be based on the achievement of the Key Performance Indicators (KPIs) as specified in Appendix-V or such other parameters as may be prescribed by the Commission.

(2)

Each Regional Load Despatch Centre shall submit its actual performance against each of the key performance indicators to the Commission on annual basis as per the format specified in Appendix-V.

(3)

NLDC shall submit the details in regards to each Key Performance Indicator in the format specified in Appendix-V along with the methodology for approval of the Commission.

(4)

The Commission shall evaluate the overall performance of the RLDCs or NLDC, as the case may be, on the basis of weightage specified in Appendix-V.

(5)

The RLDCs or NLDC, as the case may be, shall be allowed to recover incentive of 15% of Annual LDC Charges for aggregate performance level of 90%. The incentive shall increase by 1% on pro-rata basis for every 5% increase of performance level above 90%: The incentive shall be capped as per DPE Office Memorandum No. W-02/0028/2017-DPE (WC)-GL-XIII/ 17 dated 3.8.2017.

Provided that incentive shall be reduced by 1% on pro-rata basis for the every 3% decrease in performance level below 90%.

(6)

The RLDCs or NLDC, as the case may be, shall compute the Key Performance Indicators on annual basis for the previous year ending on 31st March and submit to the Commission along with petitions for approval of the Commission as per Appendix-V of these Regulations:

(7)

The key performance indicators of previous year ending on 31st March shall be considered to recover incentive on each year and shall be trued up at the end of the control period.

33.

Certification Retainer-ship Amount to the employees of RLDCs and NLDC.

(1)

The employees of Regional Load Despatch Centres and National Load Despatch Centre and State Load dispatch Centres who acquire the certificate of basic level, specialist level and management level in their respective areas of specialization shall be allowed a fixed retainer-ship amount during the validity of such certificate period as per the following parameters:

Sl. No.

Certification Level

Retainer-ship amount(in Rs. Per Month)

1

Basic

7500

2

Specialist

10000

3

Management

12000

(2)

A person acquiring one basic level and more than one Specialist and/or Management level certificate shall be entitled for maximum retainer ship amount capped at the higher applicable slab. For example, a person having both basic and specialist certificates shall be entitled for a maximum retainer-ship amount of Rs. 10,000/- per month. Similarly, a person having all three levels of certificates shall be entitled for a maximum retainer-ship amount of Rs. 12,000/- per month.

(3)

Funding will be done from the LDCD Fund for (i) payment of registration and / or application fees for appearing in basic, specialist and management level examinations, (ii) payment towards training expenses for these examinations, (iii) payment of certification retainer-ship amount to the certified LDC personnel. POSOCO shall submit detailed procedure on methodology of payment of Certificate Retainer-ship for approval of Commission within 2 months of issue of these Regulations.

(4)

Certificate Retainer-ship Amount shall be in addition to the performance linked incentive specified in Regulation 32.

Chapter-10 Billing and Other Miscellaneous Provisions

34.

Billing and Payment of charges.

(1)

Bills shall be raised for the LDC charge on monthly basis by the Power System Operation Company in accordance with these regulations, and payments shall be made by the users directly to the Power System Operation Corporation Limited.

(2)

Persistent default in payment of RLDCs/NLDC fee and charges shall be brought to the notice of the Commission.

35.

Late payment surcharge.

- In case the payment of any bill for charges payable under these regulations is delayed by a user beyond a period of 45 days from the date of billing, a late payment surcharge at the rate of 1.5% per month shall be levied from the users.

36.

Recovery of cost of hedging or Foreign Exchange Rate Variation.

- Recovery of cost of hedging or foreign exchange rate variation shall be made directly by the RLDCs from the users without making any application before the Commission:

Provided that in case of any objections by users regarding the cost of hedging or foreign exchange rate variation, the RLDCs may make an appropriate application before the Commission for decision.

37.

Rebate.

(1)

A rebate of 1.5% shall be allowed by the RLDCs or NLDC on gross bill amount settled through RTGS, NEFT, Letter of Credit or cheque up to fifth day (i.e. T+5 day) from the date of issuance of the bills, where T is the date of issuance of the bill.

(2)

The rebate of 1% shall be allowed when payment is made from T+6 to T+30 days from issuance of the bill.

(3)

No rebate shall be allowed for payment made from T+31 days till T+45 days from the date of issuance of the bill.

38.

Dispute Resolution.

- In case of dispute, any of the parties may make an application in accordance with the Central Electricity Regulatory Commission (Conduct of Business) Regulations, 1999, as amended from time to time, including statutory re- enactment thereof, for settlement of the dispute.

39.

Power to Relax.

- The Commission, for reasons to be recorded in writing, may relax any of the provisions of these regulations on its own

motion or on an application made before it by NLDC or RLDCs or Users after giving reasonable opportunity to those likely to be affected by such relaxation.

40.

Removal of Difficulty.

- If any difficulty arises in giving effect to the provisions of these regulations, the Commission may, by order, make such provision not inconsistent with the provisions of the Act or provisions of any other regulations specified by the Commission, as may appear to be necessary for removing the difficulty in giving effect to the objectives of these regulations.

Appendix

Tariff Filing Forms (NLDC/RLDCs)

Appendix-I

Index

Checklist of Forms and other information/ documents for tariff filing for NLDC/RLDCs

Form No.

Tariff Filing Formats (RLDCs)

Tick

FORM-1

Summary Sheet

FORM-2

Calculations for Return on Equity

FORM-3A

Financial Package

FORM-3B

Statement of Capital Cost

FORM-3C

Financing of Additional Capitalization

FORM-4A

Calculation of Interest on Normative Loan

FORM-4B

Calculation of Weighted Average Rate of Interest
on Actual Loans

FORM-4C

Details of Foreign Loans

Form-4D

Details of allocation of Corporate loans to
various RLDCs

FORM-5A

Statement of Depreciation

FORM-5B

Calculation of depreciation rate

FORM-6A

Details of Operation and Maintenance Expense
excluding Human Resource Expenses

FORM-6B

Details of Human Resource Expenses

FORM-6C

Details of Repairs and Maintenance Expenses

FORM-6D

Details of Administrative and General expenses

FORM-7

Details of Operational Expenditure (OPEX)

FORM-8

Interest on Working Capital

FORM-9

Year wise statement of LDC Development Fund
(projected)

FORM-10

Other Income

Other Information/ Documents

Sl. No.

Information/Document

Tick

1

Audited Balance Sheet and Profit & Loss

Accounts with all the Schedules & Annexure for RLDC /NLDC and
Corporate office.

2

Copies of relevant loan Agreements

3

(a) Copies of the
approval of Competent Authority for the Capital Cost and
Financial package.

(b) CAPEX and REPEX plan along with Board
approval, estimated capital cost and justification

4

(a) Copies of the
Equity participation agreements and necessary approval for the
foreign equity, if any.

(b) Equity contribution from LDC Development
Fund along with Board Approval

5

Any other relevant information, (Please specify)

Note 1. - Electronic copy of the petition (in words format) and detailed calculation as per these formats (in excel format)
and any other information submitted shall also be furnished in the electronic form.

Form-1

Summary Sheet

Name of the NLDC/RLDCs: _____

(Rs. In lakh)

S.N.

Particulars

Form No.

Existing 2018-19

2019-20

2020-21

2021-22

2022-23

2023-24

1

2

3

4

5

6
7
8
1
[Return on Equity]
[Details of calculations, considering equity as per regulation, to be furnished.]
2
Interest on Loan Capital
3
Depreciation
4
O&M Expenses excluding human resource
expenses
5
Human resource expenses including HRD
6
OPEX
7
[NLDC/RLDC]
[NLDC charge & corporate office expense applicable for RLDCs]
charges and Corporate office expenses
(as applicable)
8
Interest on Working Capital
Total
Petitioner
Form-2
Calculation for return on equity
Name of NLDC / RLDCs :
_____ Regional Load Despatch Centre
Year ending March
Particulars
Unit
Existing 2018-19
2019-20
2020-21
2021-22
2022-23
2023-24
1
2
3
4
5
6
7
8
Base rate of Return on Equity
%
Tax Rate
%

Detailed Calculation for Return on Equity

Particulars

Unit

Existing 2018-19

2019-20

2020-21

2021-22

2022-23

2023-24

Gross Equity As On 1.4.2019 For RLDC Assets

ADD CAP 2019-20 (AVG Equity During The Year)

ADD CAP 2020-21 (AVG Equity During The Year)

ADD CAP 2021-22 (AVG Equity During The Year)

ADD CAP 2022-23 (AVG Equity During The Year)

ADD CAP 2023-24 (AVG Equity During The Year)

Total Equity

Rate of Return on Equity

Return on Equity

Note. - Income tax rate applicable for each financial year is based on the rates as per Income Tax Act, 1961

Petitioner

Form-3A

Financial Package

Name of the LDC: _____

Project Cost as on 1.4.2019: _____

Date of Commercial Operation: _____

(Rs in lakh)

Financial Package as Approved

Financial Package as on COD/1.4.2019

As Admitted on 1.4.2019

Currency and Amount3

Currency and Amount3

Currency and Amount3

1

2

3

4

5

6

7

Loan-I

Loan-II

Loan-III

and so on

Equity-

Foreign

Domestic

Total Equity

Debt : Equity Ratio

Petitioner

Form-3B

Statement of Capital cost

Name of the NLDC/ RLDCs :

(Rs in lakh)

As on relevant[date]

[Relevant date/s means date of COD and financial year start date and end date]

.

A

(a) Opening Gross Block Amount as per books

(b) Amount of capital liabilities in A(a) above

(c) Amount of IDC, FC, FERV & Hedging cost
included in A(a)above

(d) Amount of IEDC (excluding IDC, FC, FERV &
Hedging cost) included in A(a) above

B

(a) Addition in Gross Block Amount during the
period

(b) Amount of capital liabilities in B(a) above

(c) Amount of IDC, FC, FERV & Hedging cost
included in B(a)above

(d) Amount of IEDC (excluding IDC, FC, FERV &
Hedging cost) included in B(a) above

C

(a) Closing Gross Block Amount as per books

(b) Amount of capital liabilities in C(a) above

(c) Amount of IDC, FC, FERV & Hedging cost
included in C(a) above

(d) Amount of IEDC (excluding IDC, FC, FERV &
Hedging cost) included in C(a) above

Petitioner

Form-3C

Financing of Additional Capitalisation

Name of the NLDC/RLDCs :

(Rs. in lakh)

Projected/Actual

Admitted

Financial Year (Starting from 1.4.2019)

[Year1]

[Year 1 refers to Financial Year of COD and Year 2, Year 3 etc. are the subsequent financial years respectively.]

Year2

Year3

Year4

Year 5 & So on

Year1

Year2

Year 3

Year 4

Year 5 & So on

1

2

3

4

5

6

7

8

9

10

11

Amount capitalized in Work/Equipment

Financing Details

Loan-1

Loan-2

Loan-3 and soon

Total Loan2

Equity

Internal Resources

Others

Total

Petitioner

Form-4A

(Rs in lakh)

Calculation of interest on Normative Loan

Name of LDC:

Particulars

Existing 2018-19

2019-20

2020-21

2021-22

2022-23

2023-24

1

2

3

4

5

6

7

Gross Normative loan - Opening

Cumulative repayment of Normative Loan upto
previous year

Net Normative loan-Opening

Increase/Decrease due to ACE during the Year

Repayments of Normative Loan during the year

Net Normative loan-Closing

Average Normative Loan

Weighted average Rate of Interest on actual

Loans

Interest on Normative loan

Petitioner

Form-4B

[Calculation of Weighted Average Rate of Interest on Actual Loans]

[In case of Foreign Loans, the calculations in Indian Rupees is to be furnished. However, the calculations in Original currency are also to be furnished separately in the same form.]

Name of LDC: _____

(Rs in lakh)

Sl. no.

Particulars

Existing 2018-19

2019-20

2020-21

2021-22

2022-23

2023-24

1

2

3

4

5

6

7

8

Loan-1

Gross loan - Opening

Cumulative repayments of Loans upto previous
year

Net loan - Opening

Add: Drawal (s) during the Year

Less: Repayment (s) of Loans during the year

Net loan - Closing

Average Net Loan

Rate of Interest on Loan on annual basis

Interest on loan

Loan repayment effective from (date to be
indicated)

Loan-2 ...

Loan-3 and so on

Total Loan

Gross loan - Opening

Cumulative repayments of Loans upto previous
year

Net loan - Opening

Add: Drawal (s) during the Year

Less: Repayment (s) of Loans during the year

Net loan - Closing

Average Net Loan

Interest on loan

Weighted average Rate of Interest on Loans

Petitioner

Form -4C

Details of Foreign Loans

Name of the LDC: _____

Exchange Rate as on 01.04.2019: _____

(Rs. in lakh)

FY starting from 1.4.19

Year-1

Year-2 - Year-3 and so on

S

1

2

3

4

5

6

7

8

9

10

Date

Amount (Foreign Exchange)

Exchange rate

Amount (in Rs)

Date

Amount (Foreign Exc.)

Exchange Rate

Amount (in Rs)

...

Currency1 [1]

A 1

At the date of Drawl

2

Scheduled repayment date of principal

3

Scheduled payment date of interest

4

At the end of Financial year

B

In case of Hedging [3]

1

At the date of hedging

2

Period of hedging

3

Cost of hedging

Currency2 [1]

A1

At the date of Drawl

2

Scheduled repayment date of principal

3

Scheduled payment date of interest

4

At the end of Financial year

B

In case of Hedging [3]

1

At the date of hedging

2

Period of hedging

3

Cost of hedging

Petitioner

Form-5A

Statement of Depreciation

Name of LDC:

(Rs. In lakh)

Financial Year

Existing 2018-19

2019-20

2020-21

2021-22

2022-23

2023-24

1

2

11

12

13

14

15

Depreciation on Capital Cost

Depreciation recovered during the Year

Cumulative depreciation deducted due to de-capitalization or write off of the assets etc.

Cumulative Depreciation & Advance against

Depreciation recovered upto the year

Petitioner

Form-5B

Calculation of Depreciation Rate

Name of LDC:

(Rs in lakh)

Sl. no.

[Name of the Assets]

[Name of the Assets should conform to the description of the assets mentioned in Depreciation Schedule appended to the Notification.]

gross Block as on 31.03.2019, whichever is later and subsequently for each year thereafter up to 31.3.2024

Depreciation Rates as per CERC's Depreciation

Rate Schedule

Depreciation Amount for each year up to

31.03.2024

1

2

3

4= Col.2 X Col.3

1

Land (Freehold, Lease hold)

2

Building and civil works

3

Auxiliary power supply system

4

Office furniture and furnishing

5

Communication equipment

6

SCADA hardware with test equipment and spares

7

ICT equipment

8

Software

9

Total

Weighted Average Rate of Depreciation (%)

Petitioner

Form-6A

Details of Operation and Maintenance Expenses excluding Human Resource expenses

Name of LDC:

(Rs. in lakh)

Items

2019-20

2020-21

2021-22

2022-23

2023-24

1

2

3

4

5

6

1

Repairs and maintenance expenses

2

Administrative and General expenses etc.

3

Total

Note. - 1. Detail of these expenditure as per formats enclosed

2. To be furnished for the [...] LDC.

Petitioner

Form-6B

Name of LDC:

Details of Human Resource Expenses

Period-

1

Actuals For Previous Five Years

2

Actuals for Ist Six Months of the Current Year

3

Expected for Last Six Months of the Current Year

4

Expected for Ensuing Year

Sr. No.

Account Code

Particulars

Executive

Non-Executive

Total

1

Number of Employees

2

Salaries

3

Over-time

4

Dearness Allowance

5

Other Allowance

6

Bonus

7

Productivity Linked Incentive

8

Sub Total (1 to 6)

Other Staff Cost

8

Reimbursement of Medical Expenses

9

Leave Travel Concession

10

Reimbursement of House Rent

11

Interim Relief to Staff

12

Encashment of Earned Leave

13

Honorarium

14

Payment under Workmen compensation Act

15

Ex-gratia

16

Expenditure on VRS

17

Sub Total (8 to 16)

18

Staff Welfare Expenses

19

Terminal Benefits

20

Provisions

21

Others (Specify)

22

Human Resource Development

23

Total (7+17+18+19+20+21+22)

Revenue recovered, if any

24

Revenue recovered, if any

25

Net Total (23-24)

Additional Information

1

No. of Employees as on :

(i) Executives

(ii) Non-Executives

(iii) Skilled

(iv) Non-Skilled

Total

2

No. of Employees per

(i) MW handled

(ii) MKwh handled

(I) An annual increase in HR expenses under a given head in excess of 20 percent should be explained with proper justification.

(II) The data should be based on audited balance sheets.

(III) Details of arrears, if any pertaining to prior period should be mentioned separately.

(IV) No. of employees opting for VRS during each year should be indicated.

(V) Details of abnormal expenses, if any shall be furnished separately.

Form-6C

Details of Repairs and Maintenance Expenses

Name of LDC:

A. Repairs and Maintenance Expenses(Actuals)

(Rs in lakh)

Sr.No.

Description

Actuals for previous Financial Year

Current Financial Year

Estimates for ensuing year

Actual For First Six Months

Projection For Balance Six Months

Total

1

Consumption of stores and spares

2

Loss of stores and spares

3

Plant & Machinery repairs and maintenance

4

Civil works repairs and Maintenance

5

Annual Maintenance Contract (4a+4b+4c)

5a

-Plant & machineries

5b

-Civil repairs and maintenance

5c

-Others

6

Others (Specify)

7

Total (1+2+3+4+5+6)

8

Revenue recoveries, if any

9

Net Total (7-8)

B. Repairs and Maintenance Expenses (As per Regulation)

(Rs in lakh)

Particulars

2014-15

2015-16

2016-17

2017-18

2018-19

Admitted Capital cost as on 1st April of the year

Repairs and Maintenance expenses

Repairs and Maintenance expenses as a percentage of Capital cost

Petitioner

Form-6D

Details of Administrative and General Expenses

Name of LDC/:

Sr.No.

Description

Actuals for previous Financial Year(Rs in Lakh)

Current Financial Year(Rs in Lakh)

Estimates for ensuing year(Rate in Lakh)

| Actual For First Six Months

Projection For Balance Six Months

Total

|-

Property Related Expenses

1

License Fees

2

Rent

3

Rates & Taxes

4

Insurance

5

Contribution to accident reserve fund

6

Sub total :

Communication

7

Telephone & Trunk Call

8

Postage & Telegram

9

Telex, Teleprinter Charges, Telefax

10

Courier Charges

11

Other

12

Sub total :

Professional Charges

13

Legal expenses

14

Consultancy charges

15

Technical fees

16

Audit fees

17

Other charges

18

Sub total :

Conveyance & Travelling

19

Conveyance expenses

20

Travelling expenses

21

Hire charges of vehicle

22

Others

23

Subtotal :

Other Expenses

24

Electricity charges

25

Fees & Subscription

26

Books & Periodicals

27

Printing & Stationery

28

Advertisement

29

Entertainment

30

Watch & Ward

31

Miscellaneous

32

Organizational Development Expenses

33

Donation

34

Subtotal :

Material Related Expenses

35

Demurrage and Wharf age on materials

36

Clearing & forwarding charges

37

Transit insurance

38

Subtotal :

39

Others (Specify)

40

Total (6+12+18+23+34+38+39)

41

Revenue recoveries, if any

42

Net Total (40-41)

Petitioner

Form-7

Details of OPEX

Name of LDC/

(Rs in lakh)

Sl. No.

Particulars

2019-20

2020-21

2021-22

2022-23

2023-24

1

2

3

4

5

6

7

1

2

3

4

5

6

7

Total

Petitioner

Form-8

Calculation of Interest on Working Capital

Name of LDC/

(Rs in lakh)

Sl. No.

Particulars

Existing 2018-19

2019-20

2020-21

2021-22

2022-23

2023-24

1

2

3

4

5

6

7

8

1

O & M expenses excl. HR

2

Human resource expenses

3

NLDC charges (Applicable for RLDC only) or RLDC

Charges (Applicable only for SLDCs)

4

Receivables

5

Total Working Capital

6

Rate of Interest

7

Interest on Working Capital

Petitioner

Form 9

LDC Development Fund (Projected)

Name of LDC: _____

(Rs in lakh) Particulars

Existing 2018-19

2019-20

2020-21

2021-22

2022-23

2023-24

1

2

3

4

5

6

7

Opening LDC Development Fund - Opening

Additions in LDC development fund during the year

Total LDC development fund

Less: Utilization for capital expenses

Less : Utilization for revenue expenses

Net LDC development fund as on 31st March of the year

Average fund accumulated during the year

Note. - Break-up of additions and utilization shall be provided in separate sheet for each year

Petitioner

Form 10

Other Income

Name of LDC: _____

(Rs in lakh) Particulars

As on 31.3.2019

2019-20

2020-21

2021-22

2022-23

2023-24

1

2

3

4

5

6

7

Other Income - Opening

Add : Short term open access charges

Add : Allocation from REC income

Add:

Add:

Gross Income during the year

Less : Utilization to meet shortfall

Less: Use for...

So on

...

Net Income as on 31st March....

Petitioner

Appendix-II

[To be published in pursuance of Regulation 6]

Name of the Applicant (in Bold Letters)

(Registered Office Address)

1. The applicant above-named has made an application before the (Central Electricity Regulatory Commission, [Location] for determination of fees and charges for [Give name of the applicant].

2. The users of the [...] LDC are:

a.

b.

3. Details of tariff (Publish only applicable portion):

(Rs. in lakh)

Tariff for the previous year

Year-wise tariff sought to be determined

Previous year

2019-20

2020-21

2021-22

2022-23

2023-24

[...] LDC

4. A copy of the application made for determination of tariff is posted on the website (indicate here the address of the website).

5. The suggestions and objections, if any, on the proposals for determination of tariff contained in the application be filed by any person, including the beneficiary before the Secretary, Central Electricity Regulatory Commission, [Address] with a copy to the applicant within 30 days of publication of this notice.

Place _____ Date _____

Name and Designation of the Authorized Signatory

Appendix-III

Depreciation Schedule

S. No.

Asset Particulars

Depreciation Rate

A

Land under full ownership

0.00%

B

Land under lease

(a)

for investment in the land

3.34%

(b)

For cost of clearing the site

3.34%

C

Other Assets

A

Building & Civil Engineering works

(i)	Offices and residential	
3.	[34%]	
(ii)	Containing plant and equipment	
3.34%		
(iii)	Temporary erections such as wooden structures	
100.	[00%]	
(iv)	Roads other than Kutcha roads	
3.	[34%]	
(v)	Others	
3.	[34]%	
B	Transformers, Kiosk, sub-station equipment & other fixed apparatus(including plant foundation)	
(i)	Transformers including foundation shaving rating of 100 KVA and over	
5.28%		
(ii)	Others	
5.28%		
C	Solar Panel/Wind Mill	
5.28%		
D	Lightning arrestor	
(i)	Station type	
5.28%		
(ii)	Pole type	
5.28%		
(iii)	Synchronous condenser	
5.28%		
E	Batteries	
15.00%		
(i)	Underground cable including joint boxes and disconnected boxes	
5.28%		
(ii)	Cable duct system	
3.34%		
F	Overhead lines including cable support	

systems

(i)

Lines on fabricated steel operating at terminal

voltages higher than 66 kV

3.34%

(ii)

Lines on steel supports operating at terminal

voltages higher than 13.2 kV but not exceeding 66 kV

5.28%

(iii)

Lines on steel on reinforced concrete support

5.28%

(iv)

Lines on treated wood support

5.28%

G

Meters

5.28%

H

Self-propelled Vehicles

9.50%

I

Air Conditioning Plants

(i)

Static

5.28%

(ii)

Portable

9.50%

J (i)

Office furniture and furnishing

6.33%

(ii)

Office equipment

6.33%

(iii)

Internal wiring including fittings and apparatus

6.33%

(iv)

Street Light fittings

5.28%

K

Apparatus let on hire

(i)

Other than motors

9.50%

(ii)

Motors

6.33%

L

Communication equipment

(i)
Radio and high frequency carrier system
6.33%

(ii)
Telephone lines and telephones
6.33%

M
I. T equipment
15.00%

N
Software
15.00%

O
Any other assets not covered above
5.28%

Petitioner

Appendix-IV

(In Compliance of Regulation 4)

1. Name of the entity (in bold letters):
2. Registered office address:
3. Region in which registration is sought:

i. North-eastern

ii. North

iii. East

iv. West

v. South

4. User category:

i. Generating Station

ii. Seller

iii. Buyer

iv. Transmission Licensee

v. Distribution Licensee

vi. Trading Licensee

vii. Power Exchange

viii. Battery Energy Storage system

ix. QCA / Aggregators

x. Others

5. User details (as on 31st March of last financial year):

i. Category - generating Station

i. Total Installed Capacity

ii. Maximum Contracted Capacity (MW) using ISTS

iii. Points of connection to the ISTS:

Sl. No.

Point of connection

Voltage level (kV)

Number of Special Energy Meters (Main) installed
at this location

ii. Category - Seller/Buyer/Distribution Licensee

i. Maximum Contracted Capacity (MW) using ISTS

ii. Points of connection to the ISTS:

Sl. No.

Point of connection

Voltage level (kV)

Number of Special Energy Meters (Main) installed
at this location

iii. Category - Transmission Licensee (inter-State)

i. Sub-stations:

Sl. No.

Substation Name

Number of transformer

Total Transformation Capacity or Design MVA
handling capacity if switching Station

ii. Transmission lines: (line wise details to be given)

Sl. No.

Voltage level (kV)

Number of transmission lines

Total Circuit-Kilometers

iv. Category (Others): Please specify details.

6. Contact person(s) details for billing related to [...] LDC:

i. Name:

ii. Designation:

iii. Telephone No.:

iv. E-mail address:

v. Postal address:

7. Other Details:

i. PAN No.:

ii. GST No.:

iii. Bank Account No.:

iv. Bank Name and Address:

v. MICR No:

The above information is true to the best of my knowledge and belief.

Signature of Authorized Representative

Place:

Name:

Date:

Designation:

Contact number:

Appendix-V

Assessment of Key Performance Indicators for RLDC / NLDC

Name of NLDC/RLDCs: _____

Performance Year: _____

Category

Overall weightage

Sr. No.

Key Performance Indicators

Weightage

(A) Stake holder satisfaction

40

1

MoU Rating as per DPE

10

2

Facilitate power system and market functioning	
? Power Market transaction (Collective & Bilateral), REC, ESCerts	
? Power System Functioning: Calculation & reporting of FRC, declaration of transmission losses, stakeholder meetings including cross border	
30	
3	
Maintain system reliability	
? FDI	
? VDI	
Maintenance shutdown coordination	
20	
4	
Website Availability	
10	
5	
Information dissemination	
? ATC/TTC	
? Transactions scheduled	
6	
Preparation of accounts	
?	
Interconnection meter error reporting	
? Ancillary Services	
?AGC	
20	
(B) Financial Prudence	
20	
1	
Variance in Capex Utilization	
40	
2	
Statutory compliance - Audits	
60	
(C) Learning & Growth	
20	
1	
New technology adoption / R&D	
30	
2	
Lessons learnt and knowledge dissemination by way of data intensive reports	
30	
3	
Adequacy of HR - % of certified operators among	

eligible operators

20

4

Capacity Building

? No. of

man-days per year per eligible employee

? FOLD Meetings/Workshops

20

(D) Internal Process

20

1

Availability of Decision Support System - SCADA

40

2

Availability of infrastructure and amenities

30

3

ISO Certification

10

4

Process Documentation - Black Start, Reactive

Power

20

(Calculations of specific metrics for the key performance indicators above are to be detailed in a Procedure duly prepared by the POSOCO and submit to Commission within 3 months of issue of these Regulations for approval)

Appendix-VI

Human Resource Requirement - Projection for Control Period: _____

I. Level Wise Projected Manpower

Grade

Description

Year-1

Year-2

Year-3

Year-4

Year-5

Board

Director

E9

Executive Director

E8

General Manager/ Sr. General Manager/ Chief

General Manager

E7

Dy. General Manager/ Sr. Dy. General Manager

E5-E6

Manager/ Chief Manager

E3-E4

Executive Trainee/ Asstt. Manager/ Dy. Manager

E2

Engineer/ Officer

NE

Supervisor/ Junior Engineer/ Workmen

TOT-E

Total Executives

E/NE

Ratio of Executives to Non-Executive =

(TOT-E)/(NE)

II. Department Wise Projected Manpower

Description

Year-1

Year-2

Year-3

Year-4

Year-5

E-RS

Executives working in rotating shifts

E-SO

Executives in System Operation functions

(Offline)

E-MO

Executives in Market Operation functions

(Offline)

E-SL

Executives in System Logistics functions

(off-line)

E-OTH

Executives in Other Support functions (Off-line)

(Law, HR, F&A, etc.)

E-GS

Executives working in general shifts (ESO+

MO+SL+OTH)

RS/GS

Ratio of Executives in Rotating Shift / General

Shift

SO/TOT

Ratio of Executives (SO/Total)

MO/TOT

Ratio of Executives (MO/Total)

SL/TOT

Ratio of Executives (SL/Total)

OTH/TOT

Ratio of Executives (Oth/Total)

III. Number of personnel in Load Despatch Centre having valid certificates (as on 31st March of respective year)

S No.

Particulars

Year-1

Year-2

Year-3

Year-4

Year-5

A

Certified executives- Basic level

B
 Certified executives - Reliability Specialist
 C
 Certified executives - Market Specialist
 D
 Certified executives- System Logistics
 Specialist
 E
 Certified executives - Specialist (Others)
 F
 Certified executives- Management level
 G
 Total number of certified executives
 H
 Total number of executives
 I
 Ratio of Basic to Total (A/H)
 J
 Ratio of Reliability Specialist to Total (B/H)
 K
 Ratio of Market Specialist to Total (C/H)
 L
 Ratio of Logistics Specialist to Total (D/H)
 M
 Ratio of Other Specialist to Total (E/H)
 N
 Ratio of Management Specialist to Total (F/H)
 IV. Discipline wise projected Manpower
 S No.
 Discipline (at graduation level)
 Year-1
 Year-2
 Year-3
 Year-4
 Year-5
 1
 Power System
 2
 Electrical
 3
 Renewable
 4
 Communication
 5
 Computer Science
 6
 Public Policy
 7
 Economics
 8
 Commerce

9
Statistics
10
Law
11
Human Resource
12
Finance
13
Management
14
Others-(Specify)
Related AI tags, queries and research notes
Translation